PASCO COUNTY, FLORIDA

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PLANNING AND ZONING DEPT.
PASCO COUNTY GOVT. COMPLEX
7432 LITTLE ROAD
NEW PORT RICHEY, FL 34654

February 21, 1990

Ms. Suzanne Cooper, DRI Coordinator
Tampa Bay Regional Planning Council
9455 Koger Boulevard
St. Petersburg, FL 33702

Ms. Marina Gonzalez-Pennington
Florida Department of Community Affairs
2470 Centerview Drive
Tallahassee, FL 32399

Dear Ladies:

It has come to our attention that the attached exhibits were inadvertently incorporated into the Trout Creek Development of Regional Impact Development Order at sometime during the Agenda process. After inquiry of DCA staff, it was my understanding that a letter sent to the appropriate agencies, which identified the error, would rectify the situation. Therefore, it is requested that the same exhibits as attached be removed from your respective documents.

Hopefully, this will be sufficient to clear things up. If not, please let me know of any further action required by Pasco County.

Sincerely,

Tammy B. Vrana

Tammy B. Vrana
Planner II

TBV/t022002:wp

cc: H. Clyde Hobby, P.A., 6917 S.R. 54, New Port Richey, FL 34653
Samuel P. Steffey II, Planning Director

BY COMMISSIONER_____ RESOLUTION NO. _____

T JT CREEK DEVELOPMENT ORDEI MENDMENT
DEVELOPMENT OF REGIONAL ..PACT
SUBSTANTIAL DEVIATION DETERMINATION

RESOLUTION AMENDING RESOLUTION NO. 90-32, AS AMENDED, TO APPROVE REVISIONS TO THE MASTER DEVELOPMENT PLAN FOR THE MEADOW POINTE (f/k/a TROUT CREEK) DEVELOPMENT OF REGIONAL IMPACT AND DETERMINING THAT THE PROPOSED CHANGE DOES NOT CONSTITUTE A SUBSTANTIAL DEVIATION TO THE APPROVED DEVELOPMENT ORDER.

WHEREAS, on October 9, 1973, the Board of County Commissioners of Pasco County adopted by resolution a Development of Regional Impact Development Order approving, with conditions, the Deerfield Village Development of Regional Impact.

WHEREAS, the Development Order was amended by the Board of County Commissioners by Resolution No. 89-10, dated October 11, 1988; Resolution No. 89-29, dated November 15, 1988; Resolution No. 89-69, dated January 4, 1989, rescinding Resolution Nos. 89-10 and 89-29; and Resolution No. 90-32, a Substantial Deviation Development Order approved on November 21, 1989.

WHEREAS, on July 1, 1991, Trout Creek Development Corporation filed a Notification Requesting a Change to an Approved Development Order, pursuant to Section 380.06(19), Florida Statutes.

NOW, THEREFORE, BE IT RESOLVED by the Board of County Commissioners of Pasco County in regular session duly assembled this 12th day of November, 1991, that:

A. The Board of County Commissioners of Pasco County makes the following FINDINGS OF FACT:

1. Resolution No. 90-32 allowed development of 4,500 residential units and commercial/professional development totaling 61.5 acres, or 653,900 gross square feet of floor area.

2. Trout Creek Development Corporation has filed a Notification of Proposed Change to a Previously Approved Development of Regional Impact Development Order on Florida Department of Community Affairs Form BRM-08-86.

3. The developer has submitted the Request for Approval of a Proposed Change simultaneously to Pasco County Growth Management, the Tampa Bay Regional Planning Council, and the Florida Department of Community Affairs.

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2. Trout Creek Development Corporation has filed a Notification of Proposed Change to a Previously Approved Development of Regional Impact Development Order on Florida Department of Community Affairs Form BRM-08-86.

3. The developer has submitted the Request for Approval of a Proposed Change simultaneously to Pasco County Growth Management, the Tampa Bay Regional Planning Council, and the Florida Department of Community Affairs.

4. The proposed change would approve a revised Table 12.B.1 to the ADA and the revised Conceptual Land Use and Geographic Map (Map H-1, H-2) attached hereto as Composite Exhibit "A" to:

a. Change the project name from Trout Creek to Meadow Pointe.

b. Change the alignment of the east-west minor arterial (County Line Road) through the project.

c. Change the configuration of parcels to accommodate the realignment of County Line Road with no change in the number of approved dwelling units, commercial acreage, or other project parameters.

d. Change the location of the school site.

e. Change the proposed access to the regional park site.

f. Identify the location of the Tampa Electric Company Substation constructed on the site, which was acquired through condemnation proceedings on June 20, 1990, resulting in a one (1) acre decrease in open space.

g. Identify the general boundaries of conservation and preservation areas.

5. The Pasco County Board of County Commissioners is the local governing body having jurisdiction over the review and approval of said Development of Regional Impact in accordance with Section 380.06, Florida Statutes.

6. The Board of County Commissioners of Pasco County has given 15 days notice and held a public hearing on October 15, 1991.

7. At the public hearing, all parties were afforded the opportunity to present evidence and argument on all issues and submit rebuttal evidence.

9. Additionally, at said public hearing, any member of the general public requesting to do so was given the opportunity to present written or oral communications.

10. The Board of County Commissioners has received and considered the evidence submitted by the applicant, the recommendations of Pasco County Growth Management and the Development Review Committee, and the comments by Tampa Bay Regional Planning Council and Department of Community Affairs staffs.

B. The Board of County Commissioners of Pasco County makes the following CONCLUSIONS OF LAW:

1. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendments approved hereby do not constitute a substantial deviation and therefore do not require further Development of Regional Impact Review pursuant to Subsection 380.06(19), Florida Statutes.

2. The Trout Creek Development of Regional Impact, as amended hereby, will not unreasonably interfere with the achievement of the objectives of the State Land Development Plan.

3. The amendments approved by this Resolution are in accordance with the requirements of Section 380.06, Florida Statutes, and are consistent with the Pasco County Comprehensive Plan adopted pursuant to Section 163, Florida Statutes.

4. The impacts of the proposed development are adequately addressed by the conditions of this Development Order, as amended, pursuant to Section 380.06, Florida Statutes.

5. The proposed development is not in an Area of Critical State Concern as designated pursuant to Section 380.05, Florida Statutes.

6. These proceedings have been duly conducted pursuant to applicable law and regulations.

7. Phase I of the development remains vested pursuant to Subsection 163.3167(8), Florida Statutes and Phase II also remains vested except as to those matters described in Section C.3. of the Development Order (Transportation).

C. Having made the above findings of fact and above conclusions of law, it is ORDERED that the Trout Creek Development Order is hereby amended as follows:

1. The above-referenced proposed changes to the Trout Creek Development of Regional Impact are not a substantial deviation and, therefore, do not require further Development of Regional Impact review pursuant to Chapter 380.06(19), Florida Statutes, as amended.

2. The proposed changes to the Trout Creek Development of Regional Impact are approved and Resolution No. 90-32 is hereby amended by approving a Revised Table 12.B.1. and the Conceptual Land Use and Geographic Map (Map H-1, H-2) attached hereto as Composite Exhibit "A" incorporating the following changes:

a. Change the project name from Trout Creek to Meadow Pointe.

b. Change the alignment of the east-west minor arterial (County Line Road) through the project.

c. Change the configuration of parcels to accommodate the realignment of County Line Road with no change in the number of approved dwelling units, commercial acreage, or other project parameters.

d. Change the location of the school site.

e. Change the proposed access to the regional park site.

f. Identify the location of the Tampa Electric Company Substation constructed on the site, which was acquired through condemnation proceedings on June 20, 1990, resulting in a one (1) acre decrease in open space.

g. Identify the general boundaries of conservation and preservation areas.

The above changes are subject to the following conditions:

1. Except as specifically amended hereby, the provisions of Resolution No. 90-32 remain in full force and effect.

2. The developer shall submit a revised master drainage plan to the Development Review Division. This plan must be approved prior to the submittal of the first preliminary site plan or construction plan submitted after the approval of this amendment.

3. The developer has donated to Pasco County a 56-acre regional park site as illustrated on the revised Conceptual Land Use and Geographic Map attached hereto as Composite Exhibit "A". The developer shall provide and construct within a 60-foot right-of-way, an access to the upland area of the park site as illustrated on the above-mentioned master plan.

The alternate access as shown through Parcel No. 6 shall be constructed by the developer should the park design process for the park master plan begin and require access prior to Area No. 2 development of the DRI. If the park design process for the park master plan is not initiated until Area No. 2 of the DRI is developed, then the developer shall construct the preferred access along the western boundary of Parcel No. 9 generally as illustrated on Composite Exhibit "A".

In either instance, the County shall give the developer 60 days notice to commence, design, permit, and construct the access road. The road shall be constructed within one year of commencement. Extensions of this time frame shall not require a development order amendment and shall not be unreasonably withheld by the County. Approval of extensions shall require the concurrence of the Director of Parks and Recreation and the DRI Coordinator. The design and location requirements for the park access road as described herein are subject to modification based on permitting requirements of jurisdictional agencies.

4. There shall be no driveways connected to the required regional park access road.

5. The design speed for County Line Road shall be 45 miles per hour.

6. All commercial parcels shall be limited to internal accesses. Access to Tract 1 may have full access from C.R. 581 provided the developer obtains a permit for a median cut.

7. Within 45 days of approval of this amendment, the developer shall submit to the Growth Management a right-of-way phasing, pedestrian circulation, and buffer plan.

8. Based on the clear and convincing evidence submitted to and considered by the Board of County Commissioners, the amendments approved hereby do not constitute a substantial deviation and therefore do not require further Development of Regional Impact Review pursuant to Subsection 380.06(19), Florida Statutes.

9. The County Attorney of Pasco County is hereby directed to render certified copies of this Order to the Developer, the Department of Community Affairs, Tampa Bay Regional Planning Council, and upon attorneys of record in these proceedings.

10. This Order shall be deemed rendered upon transmittal of copies of this Order to the recipients stated in C.9 above.

11. The Developer shall record a notice of adoption of this Order as required pursuant to Chapter 380 and shall furnish the County Attorney a copy of the recorded notice.

12. This Resolution shall take effect immediately upon its adoption.

DONE AND RESOLVED THIS 19th DAY OF November, 19 91.

(SEAL)

ATTEST:

By: Jed Pittman
JED PITTMAN, CLERK

By: Donalee Schmidt dc

BOARD OF COUNTY COMMISSIONERS
OF PASCO COUNTY, FLORIDA

BY: Mike Wells
MIKE WELLS, CHAIRMAN

APPROVED AS TO LEGAL FORM AND CONTENT
Office of the County Attorney

By: _____
Attorney

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T00491/cmb